

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Purchased:

-----X
ROBERT FIGUEROA, LISETTE PEREZ and LUIS
GARCIA

Plaintiffs designate
Bronx County as the place of trial

Plaintiffs,

The basis of the venue is where the
injury occurred

-against-

SUMMONS

CITY OF NEW YORK, RICARDO BOCACHICA and
JOHN or JANE DOE 1-10,

Defendants.

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
June 29, 2021



SIM & DEPAOLA, LLP

By: Peter Sim, Esq.

Attorneys for Plaintiff(s)

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Bayside, New York 11361

(718) 281-0400

TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK
100 Church St
New York, NY 10007

RICHARDO BOCACHICA (NYPD Police Officer, Shield No. 919 and Tax No. 927937)
c/o Criminal Enterprise Invest
1 Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ROBERT FIGUEROA, LISETTE PEREZ and LUIS
GARCIA,

Index No.

Plaintiffs,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, RICARDO BOCACHICA and
JOHN or JANE DOE 1-10,

Defendants.

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Plaintiffs, Robert Figueroa, Lisette Perez and Luis Garcia by their attorneys, Sim & DePaola, LLP, for their complaint against the above Defendants, City of New York, Ricardo Bocachica and John or Jane Doe 1-10 alleges as follows:

1. This is a civil rights action, in which Plaintiffs seeks relief, vis-à-vis 42 U.S.C. §§ 1981, 1983, 1985, 1986 and 1988, the laws of the City and State of New York, in addition to the self-executing clauses or implied private causes of action within the constitution of the State of New York, for the violations of their civil rights and the deprivations to their liberties, as enumerated and promulgated by the First, Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, as well as the laws and constitution of the State of New York.
2. The following claims arose on August 22, 2019, when Defendants, acting under color of state law, unlawfully stopped, questioned, searched, arrested and detained Plaintiffs inside the vicinity of 2877 Barkley Avenue, within the County of Bronx, City and State of New York. Plaintiffs were subsequently transported to 45th NYPD Precinct, then to Central Booking. As a result, Plaintiffs were deprived of their liberty and suffered various physical, emotional and psychological injuries. Plaintiffs were wrongfully detained over the course of approximately two

(2) days. Plaintiffs were maliciously prosecuted until all criminal charges were dismissed on December 17, 2019 which constituted a termination of the criminal proceedings in favor of the accused.

3. At all times here mentioned, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

4. Plaintiffs filed their notices of claim with the City of New York in compliance with the General Municipal Law.

5. Plaintiffs have complied with municipal Defendant's request for an oral examination, pursuant to Section 50-H of the New York General Municipal Law and/or the Public Authorities Law or such requests were not timely made.

6. This action and associated claims have been commenced within one-year-and-ninety-days after the occurrences upon which they are based upon availing upon the COVID-19 tolling provisions enacted by Governor Cuomo by Executive Order 202.6 *et seq.* that tolled the statute of limitations from March 20, 2020 to November 3, 2020 for a period of two hundred twenty-eight (228) days.

7. Plaintiffs seek monetary damages (compensatory and punitive) against Defendants, an award of costs and reasonable attorneys' fees, and such other and further relief as this Court may deem just and proper.

PARTIES

8. Plaintiff, Robert Figueroa (Mr. Figueroa), is an adult Hispanic or Latina male who resides in Bronx County, within the City and State of New York.

9. Plaintiff, Lisette Perez (Ms. Perez), is an adult Hispanic or Latina female who resides in Bronx County, within the City and State of New York.

10. Plaintiff, Luis Garcia (Mr. Garcia), is an adult Hispanic or Latina male who resides in Bronx County, within the City and State of New York.

11. At all relevant times herein, Defendant, City of New York ("City"), is a municipal corporation duly organized and existing under the laws of the State of New York.

12. At all relevant times herein, the New York City Police Department ("NYPD") is a wholly owned subsidiary, which is further wholly operated, managed, maintained, and controlled by Defendant City.

13. At all relevant times herein, Defendant City, acting through its NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, screening, hiring, training, supervision, discipline, retention and conduct of all NYPD personnel, including police officers, detectives, investigators, sergeants, lieutenants and other supervisory officers or officials, as well as the individually named NYPD Defendants herein.

14. At all relevant times herein, Defendant, City, was responsible for enforcing the rules or regulations of the NYPD, and for ensuring that the NYPD personnel obey the laws and constitutions of the United States and the State of New York.

15. At all relevant times herein, Defendant RICARDO BOCACHICA ("BOCACHICA") was a police officer, supervisor, or policy maker employed by the NYPD under Shield No. 919, Tax Id No. 927937, assigned to NYPD Criminal Enterprise Invest, and, as such, was acting in his capacity as an agent, servant and employee of the defendant, City of New York. Defendant BOCACHICA is being sued in his individual and official capacities.

16. At all relevant times herein, Defendants JOHN or JANE DOE 1-10 were police officers, detectives, supervisors, policymakers, or officials employed by the NYPD, or City of New York. At this time, Plaintiffs do not know the true names or tax registry numbers of Defendants JOHN or JANE DOE 1-10, as such knowledge is within the exclusive possession of Defendants. The names JOHN or JANE DOE 1-10 are fictitious and are meant as placeholders for the Police Officers who falsely arrested, maliciously prosecuted, subjected Plaintiffs to excessive force, and who aided, abetted, assisted and acted in concert with the other Defendants to do the same.

17. At all relevant times herein JOHN or JANE DOE 1-10 were acting as agents, servants and employees of the City of New York, or the NYPD. Defendants JOHN or JANE DOE 1-10 are being sued in their individual and official capacities.

18. At all relevant times herein, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City or State of New York.

FACTUAL CHARGES

19. On August 22, 2019, at approximately 10:00 a.m., Plaintiffs received phone calls from NYPD 45th Precinct, Police officers asked them to come to the Precinct and talk about an accident that happened on March 11, 2019. In compliance with the police officers request, the Plaintiffs arrived at the 45th Precinct shortly after the aforesaid time.

20. With respect to the accident, Ms. Perez and Mr. Garcia were in the vehicle when the accident happened on March 11, 2019. The vehicle they own was a Honda 2018 Accord whose loan was cosigned by Mr. Figueroa.

21. Plaintiffs arrived at the 45th Precinct when Defendants, including BOCACHICA and JOHN or JANE DOE 1-10 began questioning Plaintiffs by accusing them of committing a crime without

having no probable cause or a lawful reason to do so, as they committed no crimes or violations of the law.

22. At no point during the verbal interaction between Plaintiffs and the Defendants, including BOCACHICA did Plaintiffs say or do anything that constituted probable cause for an arrest.

23. At the end of the verbal interaction, Defendants, including BOCACHICA and JOHN or JANE DOE 1-10, unlawfully demanded that Plaintiffs put their hands behind their backs, handcuffed them and placed them under arrest, where they were searched despite having no valid reason or probable cause to do so.

24. Defendants, including BOCACHICA and JOHN or ANE DOE 1-10, physically restrained and removed Plaintiffs by rear cuffing them in an excessively tight fashion, which resulted in substantial pain and physical suffering to Plaintiffs' wrists.

25. Plaintiffs asked Defendants, including BOCACHICA and JOHN or JANE DOE 1-10, why they were being placed under arrest numerous times, all of which were ignored.

26. Defendants, including BOCACHICA and JOHN or JANE DOE 1-10 then proceeded to criminally process Plaintiffs, which included fingerprinting, retina scans and various invasive bodily searches.

27. Plaintiffs were then placed in a cell for approximately eight (8) hours, during which time, their multiple requests for food and water were denied or ignored by Defendants, JOHN or JANE DOE 1-10.

28. After several hours at the precinct, Plaintiffs taken to Central Booking, where they were remained for approximately twenty (20) hours.

29. Defendants, including BOCACHICA and JOHN OR JANE DOE 1-10, falsely accused Plaintiffs of Insurance Fraud in 3rd, 4th and 5th Degree, Attempted Grand Larceny and Attempted Petite Larceny despite the absence of any probable cause to support their allegations.

30. Plaintiffs were then maliciously prosecuted and were compelled to return to court numerous times over the course of several months until December 17, 2019, when the Bronx County Criminal Court unconditionally dismissed the charges against them.

31. At no point prior to their interaction with the Plaintiffs did the Defendants ever observe Plaintiffs engaging in any crime or offense.

32. At no point during their interaction with Defendants, did the Defendants observe Plaintiffs commit any crime or offense.

33. Defendant BOCACHICA was Plaintiffs' arresting officer and signed the criminal court complaint against them, despite knowing the allegation within to be completely false.

34. Defendants, including BOCACHICA and JOHN or JANE DOE 1-10, never possessed probable cause to believe that Plaintiffs were guilty of any crime or offense, because they were fully aware that the entirety of the evidence against Plaintiffs were predicated on fabricated and false accounts of the defendant's observations.

35. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have imposed or acquiesced to policies or customs within the NYPD that resulted in Plaintiffs' arrest without probable cause and have failed to provide adequate training in the identification of probable cause or reasonable suspicion.

36. The instant arrest of Plaintiffs without the presence of probable cause was so egregious as to amount to the deliberate indifference by the policy and decision makers within the NYPD and

City of New York, because the need for enhanced training and supervision is obvious due to the clear lack of any probable cause to arrest Plaintiffs.

37. Upon information and belief, further details and factual allegations will become available after discovery is completed, as the current policies and customs of the NYPD and City of New York are within the exclusive knowledge of defendants.

38. Upon information and belief, the personnel files and records of the individual officers involved in Plaintiffs' arrest will reveal a history of Constitutional violations that will indicate that defendant City knew or should have known that the individual officers were unfit for employment as NYPD police officers and would be likely to commit Constitutional violations similar to the violations that were committed against Plaintiffs.

39. At all times relevant hereto, defendants, including BOCACHICA and JOHN or JANE DOE 1-10, acted maliciously and with intent to injure Plaintiffs.

40. At all times relevant hereto, defendants, including BOCACHICA and JOHN or JANE DOE 1-10, were involved in the decision to arrest Plaintiffs without probable cause or failed to intervene when they observed others arresting Plaintiffs without probable cause.

41. At all times relevant hereto, defendants, including BOCACHICA and JOHN or JANE DOE 1-10, engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when defendants observed others doing so, all in furtherance of Plaintiffs' criminal prosecution.

42. As a direct and proximate result of the acts of defendants, Plaintiffs suffered the following injuries and damages: violations of their rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation,

emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

43. Defendants, including BOCACHICA and JOHN or JANE DOE 1-10, arrested and attempted to cause a criminal prosecution to be initiated against Plaintiffs, because of their desires to use plaintiffs' arrest and criminal prosecution as leverage against their true target, to incur additional overtime compensation, benefits and career favor from the superior officers, to avoid adverse consequences associated with failing to meet NYPD departmental arrest quotas and also to conceal their egregious violations of proper police procedures and gross misconduct, including their fabrications of non-existent observations, evidence and information.

44. Defendants, including BOCACHICA and JOHN or JANE DOE 1-10, engaged in a conspiracy to falsely arrest and maliciously prosecute plaintiffs by personally conferring with each other, regarding the fabrication of the aforementioned non-existent evidence and observations, as well the manner and means by which said fabrications would be forwarded to the District Attorney's Office.

45. Plaintiffs assert that the Defendants, including BOCACHICA and JOHN or JANE DOE 1-10, who violated plaintiffs' civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence that the City and the NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers.

46. The individually named defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

47. The identity of Defendants, JOHN or JANE DOE 1-10 is unknown at this present time. However, these Defendants were involved in plaintiffs' false arrest, unlawful detention, and malicious prosecution, including fabricating evidence related to the criminal court matter with a Docket Number of 2019BX023051. Upon information and belief, the identity of the JOHN or JANE DOE 1-10 Defendants are known only to the Defendants.

48. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculcated via some incontrovertible form of evidence.

49. On March 18, 2018, *The New York Times* published an explosive article, entitled "Promotions, Not Punishments for Officers Accused of Lying," written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of

incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD's persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers' intentionally false statements, with some allegations coming from federal and state judges.

50. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled "Officers Said They Smelled Pot. The Judge Called Them Liars."

Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD's failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

51. On April 24, 2019, *The New York Times* published an article, entitled "Detective's Lies Sent Three People to Prison, Prosecutors Charge," by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through

contradictory video evidence. Det. Franco's lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

52. Other articles include: (i) "Testilying' by Police: A Stubborn Problem.," by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) "New York Detective Charged with Faking Lineup Results," by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) "He Excelled as a Detective, Until Prosecutors Stopped Believing Him," by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) "Review Board Notes Rise in New York Police Officers' False Statement," by J. David Goodman, *The New York Times*, May 14, 2015; (v) "In Brooklyn Gun Cases, Suspicion Turns to the Police," by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) "Detective is Found Guilty of Planting Drugs," by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) "The Drugs? They Came From the Police," by Jim Dwyer, *The New York Times*, October 13, 2011.

53. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled "2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D." This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD's commitment to combat the prejudices and the biases exhibited by many of its officers.

54. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies,

customs, or patterns and practices within the NYPD that resulted in Plaintiffs' arrest without probable cause.

55. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

56. Defendants' actions, pursuant to Plaintiffs' underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of Plaintiff's civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

57. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD and City of New York.

58. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of Defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

59. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including Defendants, BOCACHICA and JOHN or JANE DOES 1-10.

60. Upon information and belief, the individually named Defendants have combined to be named as Defendants in numerous lawsuits that have accused them of committing violations similar or identical to those alleged herein, all of which have resulted no disciplinary or corrective action of any kind.

61. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named Defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct.

62. The aforementioned acts of Defendants, including BOCACHICA and JOHN OR JANE DOES 1-10, directly or proximately resulted in the deprivation or violation of Plaintiffs' civil rights, as guaranteed and protected by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, as well as the laws and Constitution of the State of New York.

63. As a direct or proximate result of said acts, Plaintiffs were caused to suffer the loss of their liberties, irreparable reputational harm, loss of earnings and potential earnings, physical

injury, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience, and anxiety.

FIRST CAUSE OF ACTION

Protected Speech or Activity Retaliation Claim Under
New York State Law

64. The above paragraphs are here incorporated by reference as though fully set forth.

65. Plaintiffs engaged in speech and activities that were protected by Art. I, § 8, of the New York State Constitution.

66. Defendants committed impermissible or unlawful actions against Plaintiffs that were motivated or substantially caused by Plaintiffs' constitutionally protected speech or activities.

67. Defendants' retaliatory actions against Plaintiffs resulted in the deprivation of their liberty and the initiation of criminal charges against them.

68. Defendants' retaliatory actions adversely affected Plaintiffs' protected speech or activities by physically or procedurally preventing them from further pursuing said protected speech or activities or by chilling their desire to further participate or engage in such protected speech or activities.

69. Accordingly, Plaintiffs' right to engage in protected speech and activities, guaranteed and protected by Art. I, § 8, of the New York State Constitution, were violated by Defendants.

70. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings, under the doctrine of *respondeat superior*.

71. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION**First Amendment Retaliation Claim Under
42 U.S.C. § 1983 Against Individual Defendants**

72. The above paragraphs are here incorporated by reference as though fully set forth.

73. Plaintiffs engaged in speech and activities that were protected by the First Amendment to the United States Constitution.

74. Defendants committed impermissible or unlawful actions against Plaintiffs that were motivated or substantially caused by Plaintiffs' constitutionally protected speech or activities.

75. Defendants' retaliatory actions against Plaintiffs resulted in the deprivation of their liberty and the initiation of criminal charges against them.

76. Defendants' retaliatory actions adversely affected Plaintiffs' protected speech or activities by physically or procedurally preventing them from further pursuing said protected speech or activities, or by chilling their desire to further participate or engage in such protected speech or activities.

77. Accordingly, Plaintiffs' right to engage in protected speech and activities, as guaranteed and protected by the First Amendment to the Constitution of the United States, were violated by Defendants.

78. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION**Unlawful Search & Seizure Under
New York State Law**

79. The above paragraphs are here incorporated by reference as though fully set forth.

80. Defendants subjected Plaintiffs and their properties to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

81. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures to their persons and properties.

82. Plaintiffs did not consent to the unreasonable searches and seizures to their persons or properties.

83. The unreasonable searches and seizures to Plaintiffs' person and property were not otherwise privileged.

84. Accordingly, Defendants violated Plaintiffs' rights to be free from unreasonable searches and seizures, pursuant to Art. I, § 12, of the constitution of the State of New York and Art. II, § 8, of the New York Civil Rights Law.

85. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

86. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

Unlawful Search & Seizure Under
42 U.S.C. § 1983 Against Individual Defendants

87. The above paragraphs are here incorporated by reference as though fully set forth.

88. Defendants subjected Plaintiffs and their properties to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

89. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures to their persons and properties.

90. Plaintiffs did not consent to the unreasonable searches and seizures to their persons or properties.

91. The unreasonable searches and seizures to Plaintiffs' persons and property were not otherwise privileged.

92. Accordingly, Defendants violated Plaintiffs' rights to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the Constitution of the United States.

93. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

False Arrest & False Imprisonment Under
New York State Law

94. The above paragraphs are here incorporated by reference as though fully set forth.

95. Defendants subjected Plaintiffs to false arrest, false imprisonment, and deprivation of liberty without probable cause.

96. Plaintiffs were conscious of their confinement.

97. Plaintiffs did not consent to their confinement.

98. Plaintiffs' arrests and false imprisonments were not otherwise privileged.

99. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

100. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

False Arrest & False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

101. The above paragraphs are here incorporated by reference as though fully set forth.

102. The Defendants violated the Fourth and Fourteenth Amendments to the Constitution of the United States by wrongfully and illegally arresting, detaining and imprisoning Plaintiffs.

103. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiffs were carried out without a valid warrant, without Plaintiffs' consent, and without probable cause or reasonable suspicion.

104. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiffs.

105. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Assault and Battery Under
New York State Law

106. The above paragraphs are here incorporated by reference as though fully set forth.

107. Defendants made Plaintiffs fear for their physical well-being and safety and placed them in apprehension of immediate harmful or offensive touching.

108. Defendants engaged in and subjected Plaintiffs to immediate harmful or offensive touching and battered them without their consents.

109. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

110. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

111. The above paragraphs are here incorporated by reference as though fully set forth.

112. The Defendants violated Plaintiffs' rights, under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiffs' consent.

113. Defendants engaged in and subjected Plaintiffs to immediate harmful or offensive touching and battered them without their consents.

114. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

115. The above paragraphs are here incorporated by reference as though fully set forth.

116. Defendants initiated the prosecution against Plaintiffs.

117. Defendants lacked probable cause to believe Plaintiffs were guilty or that a prosecution would succeed.

118. Defendants acted with malice, which may be inferred in the absence of probable cause.

119. The prosecutions were terminated in Plaintiffs' favor, when all adverse were unconditionally and outright dismissed, due to the lack of probable cause to believe that Plaintiffs had committed a crime or that the prosecution would succeed.

120. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

121. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

122. The above paragraphs are here incorporated by reference as though fully set forth.

123. Defendants initiated the prosecution against Plaintiffs.

124. Defendants lacked probable cause to believe Plaintiffs were guilty or that a prosecution would succeed.

125. Defendants acted with malice, which may be inferred in the absence of probable cause.

126. The prosecutions were terminated in Plaintiffs' favor, when all adverse charges were unconditionally dismissed, due to the lack of probable cause to believe that Plaintiffs had committed a crime or that the prosecution would succeed.

127. Accordingly, Defendants violated Plaintiffs' Fourth and Fourteenth Amendment rights.

128. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

129. The above paragraphs are here incorporated by reference as though fully set forth.

130. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiffs to compel the compliance or forbearance of some act.

131. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiffs, especially with the absence of any cognizable probable cause.

132. Defendants intended to inflict substantial harm upon Plaintiffs.

133. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiffs' criminal prosecution.

134. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

135. The above paragraphs are here incorporated by reference as though fully set forth.

136. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiffs to compel the compliance or forbearance of some act.

137. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiffs, especially with the absence of any cognizable probable cause.

138. Defendants intended to inflict substantial harm upon Plaintiffs.

139. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiffs' criminal prosecution.

140. Defendants' actions therefore resulted in deprivations to Plaintiffs' rights, pursuant to the Fourth and Fourteenth Amendments.

141. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Denial of Right to Due Process Under
New York State Law

142. The above paragraphs are here incorporated by reference as though fully set forth herein.

143. Defendants fabricated false evidence to be used against Plaintiffs that was likely to influence a jury's decision.

144. Defendants forwarded said false information to prosecutors.

145. Defendants' actions resulted in post-arraignment deprivation to Plaintiffs' liberty and freedom of movement.

146. Accordingly, Defendants violated Plaintiffs' right to a fair trial, pursuant to Art. I, §§ 1, 2 & 6, of the New York State constitution, in addition to Art. II, § 12, of the New York State Civil Rights Law.

147. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

148. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Denial of Rights to Fair Trial & Due Process Under
42 U.S.C. § 1983 Against Individual Defendants

149. The above paragraphs are here incorporated by reference as though fully set forth.

150. Defendants fabricated false evidence to be used against Plaintiffs that was likely to influence a jury's decision.

151. Defendants forwarded said false information to prosecutors.

152. Defendants' actions resulted in post-arraignment deprivations to Plaintiffs' liberty and freedom of movement.

153. Accordingly, Defendants violated Plaintiffs' rights, pursuant to the Fourth, Fifth and Fourteenth Amendments to United States Constitution

154. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTIONBiased Based Profiling under
New York City Law

155. The above paragraphs are here incorporated by reference as though fully set forth herein.

156. Defendants impermissibly relied upon Plaintiffs' actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation, as the determinative factor in initiating law enforcement action against Plaintiffs, rather than Plaintiffs' behavior or other information or circumstances that would link Plaintiffs to suspected unlawful activity.

157. Accordingly, Defendants violated Plaintiffs' rights, pursuant to New York City Admin. Code § 14-151

158. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

159. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTIONDeprivation of Rights and Denial of Equal Protection of the Laws under
New York State law

160. The above paragraphs are here incorporated by reference as though fully set forth herein.

161. Plaintiffs are a members of a racial or ethnic minority and protected class.

162. Defendants discriminated against Plaintiffs on the basis of their race, colors, national origins, ancestry, genders, religions, religious practice, age, disabilities or sexual orientations.

163. Defendants also engaged in the selective treatment of Plaintiffs, in comparison to others similarly situated.

164. Defendants' discriminatory treatment of Plaintiffs were based on impermissible

considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiffs for the exertion of their Constitutional rights, or a malicious or bad faith intent to injure Plaintiffs.

165. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.

166. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiffs.

167. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.

168. Accordingly, Defendants violated Plaintiffs' rights, pursuant to Article I, § 11, of the New York State Constitution, Article VII, § 79-N, of the New York Civil Rights Law and § 296, ¶ 13, of the New York Human Rights Law.

169. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

170. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
42 U.S.C. §§ 1981 & 1983 Against Individual Defendants

171. The above paragraphs are here incorporated by reference as though fully set forth herein.

172. Plaintiffs are members of a racial or ethnic minority and protected class.

173. Defendants discriminated against Plaintiffs on the basis of their race, color or ethnicities.

174. Defendants engaged in the selective treatment of Plaintiffs in comparison to others similarly situated.

175. Defendants' selective treatment of Plaintiffs were based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiffs for the exertion of their

Constitutional rights, or malicious or bad faith intent to injure Plaintiffs.

176. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.

177. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiffs.

178. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.

179. Accordingly, Defendants violated Plaintiffs' rights, under the Fourteenth Amendment.

180. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

EIGHTEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights and Failure to Prevent the Conspiracy under
42 U.S.C. §§ 1983, 1985 & 1986 Against Individual Defendants

181. The above paragraphs are here incorporated by reference as though fully set forth herein.

182. Defendants engaged in a conspiracy against Plaintiffs to deprive Plaintiffs of their rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, to not be deprived of their liberties or properties without due process of law, or of the privileges and immunities under the laws and constitutions of the United States and of the State of New York.

183. Defendants committed overt acts in furtherance of their conspiracy against Plaintiffs.

184. As a result, Plaintiffs sustained injuries to their persons, were deprived of their liberty or were deprived of rights or privileges of citizens of the United States.

185. Defendants' conspiracy was motivated by a desire to deprive Plaintiffs of their civil rights or because of some racial, otherwise class-based, invidious or discriminatory animus.

186. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiffs' civil rights, had knowledge that acts in furtherance of the conspiracy were about to be

committed or in process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

187. Accordingly, Defendants violated Plaintiffs' rights, pursuant to the First, Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

188. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

NINETEENTH CAUSE OF ACTION

Violation of Victims of Violent Crime Protection Act under
New York City Law

189. The above paragraphs are here incorporated by reference as though fully set forth herein.

190. Defendants' acts or series of acts constituted a misdemeanor or felony against Plaintiffs, as defined in state or federal law which presented a serious risk of physical injury to Plaintiffs, whether or not such acts have actually resulted in criminal charges, prosecution or conviction.

191. Accordingly, Defendants committed a crime of violence against Plaintiffs and violated Plaintiffs' rights, pursuant to the N.Y.C. Admin. Code § 10-403.

192. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

193. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTIETH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

194. The above paragraphs are here incorporated by reference as though fully set forth herein.

195. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

196. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

197. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTY-FIRST CAUSE OF ACTION

Due Process/Fabrication of Evidence Claim Under
42 U.S.C. § 1983 Against Individual Defendants

198. The above paragraphs are here incorporated by reference as though fully set forth herein.

199. Those Defendants deliberately fabricated evidence against the Plaintiffs and that as a result of this evidence being used against them, they were deprived of their constitutional rights without due process of law.

200. As a result, Plaintiffs sustained injuries to their persons, were deprived of their liberty or were deprived of rights or privileges of citizens of the United States.

201. The Defendants fabricated evidence in order to support their false arrest, detention and prosecution of the Plaintiffs. The Defendants used this fabricated evidence and informed the prosecution that the fabricated evidence was true and accurate despite the fact that knew that the fabricated evidence was not true, As a result, the Plaintiffs were deprived of their constitutional rights.

202. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTY-SECOND CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

203. The above paragraphs are here incorporated by reference as though fully set forth herein.

204. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

205. Accordingly, the Defendants who failed to intervene violated the Fourth, Fifth, and Fourteenth Amendments.

206. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTY-THIRD CAUSE OF ACTION

Negligent Hiring, Training, Retention & Supervision Under
New York State Law

207. The above paragraphs are here incorporated by reference as though fully set forth.

208. Defendant City owed a duty of care to Plaintiffs to adequately hire, train, retain and supervise its employee Defendants.

209. Defendant City breached those duties of care.

210. Defendant City placed Defendants in a position where they could inflict foreseeable harm.

211. Defendant City knew or reasonably should have known of its employee Defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiffs.

212. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee Defendants that would have prevented the aforesaid injuries to Plaintiffs.

213. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTY-FOURTH CAUSE OF ACTION

Municipal “*Monell*” Liability Under
42 U.S.C. § 1983 Against Defendant City

214. The above paragraphs are here incorporated by reference as though fully set forth.

215. Defendant City maintained a policy or custom that caused Plaintiffs to be deprived of their civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiffs, to such violative behavior.

216. Defendant City’s employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

217. Defendant City and its policymakers failed to provide adequate training or supervision to their subordinates to such an extent that is tantamount to a deliberate indifference toward the rights of those who may come into contact with Defendant City’s employees.

218. Defendant City’s employees engaged in such egregious and flagrant violations of Plaintiffs’ Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by Defendant City and its policymakers toward the rights of individuals, who may come into contact with Defendant City’s employees.

219. Defendant City’s repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

220. Defendant City’s conduct caused the violation of Plaintiffs’ civil rights, pursuant to Constitution of the United States.

221. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiffs respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- q) On the Seventeenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- r) On the Eighteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- s) On the Nineteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- t) On the Twentieth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- u) On the Twenty-First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- v) On the Twenty-Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- w) On the Twenty-Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- x) On the Twenty-Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- y) Awarding Plaintiffs punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- z) Awarding Plaintiffs reasonable attorneys' fees and costs, pursuant to 42 U.S.C. § 1988 and all applicable state or local laws;
- aa) Together with the costs and disbursements of this action.

JURY DEMAND

Plaintiffs demand a trial by jury.

Dated: Bayside, New York
June 29, 2021

SIM & DEPAOLA, LLP

A handwritten signature in black ink, appearing to read 'Peter Sim', is written over a horizontal line.

By: Peter Sim, Esq.
Attorneys for Plaintiffs
42-40 Bell Blvd - Ste 201
Bayside, NY 11361
T: (718) 281-0400
F: (718) 631-2700

ATTORNEY VERIFICATION

I, Peter Sim, an attorney admitted to practice in the courts of New York State, state that I am partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiffs, is because Plaintiffs reside outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
June 29, 2021



PETER SIM, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ROBERT FIGUEROA, LISETTE PEREZ and LUIS GARCIA

Plaintiffs,

-against-

CITY OF NEW YORK, RICHARDO BOCACHICA and JOHN OR JANE DOE 1-10,

Defendants.

SUMMONS & VERIFIED COMPLAINT

SIM & DEPAOLA, LLP

By: Peter Sim, Esq.

Attorneys for Plaintiff(s)

42-40 Bell Boulevard

Suite 201

Bayside, New York 11361

Tel. (718) 281-0400

To: CORPORATION COUNSEL OF THE CITY OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for